

Rajasthan Right to Information Rules, 2005

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[G.S.R. 50. - In exercise of the powers conferred by Section 27 of the Right to Information Act, 2005 \(Central Act No. 22 of 2005\), the State Government hereby makes the following rules, namely:-](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These rules may be called the Rajasthan Right to Information Rules, 2005.](#)

[\(2\)](#)

[They shall come into force on the date of their publication in the Official Gazette.](#)

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" means the Right to Information Act, 2005 (Central Act No. 22 of 2005);

(b)

"Commission" means the Rajasthan Information Commission.

(c)

"Section" means section of the Act.

(2)

The words and expressions used herein, but not defined, shall have the meaning assigned to them in the Act.

3.

Application fee.

- A request for obtaining information under sub-section (1) of Section 6 shall be accompanied by an application fee of rupees ten by way of cash against proper receipt or by demand draft or bankers cheque payable to the public authority.

4.

Fee for providing information.

(1)

For providing information under sub-section (1) of Section 7, the fee shall be charged by way of cash against proper receipt or by demand draft or bankers cheque payable to the public authority at the following rates:-

(a)

rupees two for each page (in A-4 or A-3 size paper) created or copied;

(b)

actual charge or cost price of a copy in large size paper;

(c)

actual cost price for samples or models; and

(d)

for inspection of records, no fee for the first hour; and a fee of rupees five for each fifteen minutes or fraction thereof thereafter.

(2)

For providing the information under sub section (5) of Section 7, the fee shall be charged by way of cash against proper receipt or by demand draft or bankers cheque payable to the public authority at the following rates: -

(a)

for information provided in diskette or floppy rupees fifty per diskette or floppy;

(b)

for information provided in printed form at the price fixed for such publication or rupees two per page of photocopy for extracts from the publication.

5.

Contents of appeal.

- An appeal to the Commission shall contain the following information namely: -

(i)

name and address of the appellant;

(ii)

name and address of the State Public Information Officer;

(iii, particular, of the order against which the appeal is made including number date;

(iv)

brief fact leading to the appeal;

(v)

grounds for the prayer or relief;

(vi)

provisions of the Act or the rules,

(vii)

prayer or relief sought;

(viii)

verification by the appellant; and

(ix)

any other information which the Commission may deem necessary for deciding the appeal.

6.

Documents to accompany appeal.

- Every appeal made be accompanied by the following documents namely.-

(i)

attested time copy of the order against which the appeal being prefer,

(ii)

copies of documents relied upon by the appellant and referred to in the appeal, and

(iii)

an index of the documents referred to in the appeal.

7.

Procedure in deciding appeal.

- In deciding the appeal the Commission shall-

(i)

consider oral and written evidence on oath or on affidavit from concerned or interested person;

(ii)

peruse or inspect documents public record or copies thereof;

(iii)

inquire through authorized officer further details or facts;

(iv)

hear State Public Information Officer, Assistant State Public Information Officer, Assistant State Public Information Officer, such Senior Officer, who decided the first appeal as the case may be,

(v)

hear third party, and

(vi)

receive evidence of affidavit from State Public Information Officer, Assistant State Public information Officer, such senior Officer, who decided the first appeal or third party.

8.

Service of notice by Commission.

- Notice to be issued observed in any of the following modes namely:-

(i)

service by the party itself,

(ii)

by hand delivery (dasti) through process server;

(iii)

by registered post with acknowledgement due.

9.

Signing of Order.

- Order of the commission pronounced in open proceeding shall be in writing and authenticated by the register or any other officer authorized by the Commission for the purpose.

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